



POLICE DEPARTMENT

May 17, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208148 (Incident Date: November 24, 2022) regarding Sergeant Eric Johnson, Tax No. 956777 (DADS No. 2024-30351) and Police Officer Mario Avenoso, Tax No. 957343 (DADS No. 2024-30350)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208148, pertaining to Sergeant Eric Johnson and Police Officer Mario Avenoso. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said members of the service would be detrimental to the Police Department's disciplinary process.

In this case, Sergeant (then Police Officer) Johnson and Officer Avenoso, along with four other members of the service, were trying to arrest an individual who was actively resisting. During the struggle, Sergeant Johnson discharged his conducted electrical weapon twice in cartridge mode and both times the probes struck the individual in the back. Officer Avenoso was able to get the individual's right arm behind his back so that he could be rear-handcuffed. The CCRB found Sergeant Johnson's second CEW deployment to be gratuitous and improper. The CCRB also found part of Officer Avenoso's actions to have constituted a chokehold and restricted the individual's breathing.

In addition to the CCRB's investigation into Sergeant Johnson's use-of-force, the Department also conducted a parallel investigation. That internal investigation exonerated Sergeant Johnson and found his actions to be within guidelines. This finding is supported by body-worn camera footage of the incident. Despite multiple officers grappling with him, the individual can be seen to actively

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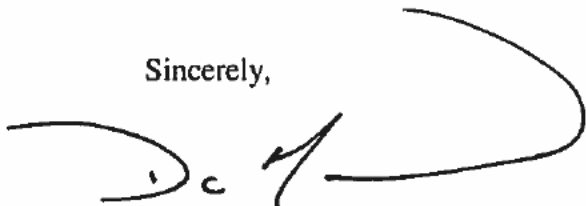
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resist, and only after Sergeant Johnson's second deployment were the officers able to successfully place the individual in handcuffs. Sergeant Johnson's use of his CEW likely prevented a further escalation of force and physical injury and was in accordance with his training and with Department policy.

Likewise, Officer Avenoso's actions were proper. The CCRB's determination that Officer Avenoso's placement of his knee on the back of the individual's neck constituted a chokehold and restricted his breathing is not supported by the body-worn camera footage. It is clear that Officer Avenoso exerted minimal, if any, pressure on the back of the individual's neck during the brief moment there was contact. The individual, while lying on the floor after just having been handcuffed, had his head up and off the floor while Officer Avenoso's knee was on the back of the individual's head/neck. If Officer Avenoso had exerted any pressure with his knee, the individual would not have been able to keep his head up. Without pressure, sufficient enough to force the individual to put his head down onto the floor, there could not likely have been any restriction to his blood flow or breathing.

For these reasons, the Police Commissioner finds that both Sergeant Johnson and Police Officer Avenoso's actions were within guidelines. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Sergeant Johnson for the allegation of improper use of a conducted electrical weapon. Similarly, the Police Commissioner intends to impose no disciplinary action against Officer Avenoso for the allegations that he used a chokehold and restricted the breathing of the complainant.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping loop at the end.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

May 21, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police
Department One Police Plaza
New York, New York 10038

RE: CCRB Case No. 202208148 (Incident Date: November 24, 2022) regarding Sergeant Eric Johnson, Tax No 956777 (DADS No. 2024-30351) and Police Officer Mario Avenoso, Tax No. 957343 (DADS No. 2024-30350)

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 17, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and to impose no disciplinary action against either Sergeant Eric Johnson and Police Officer Mario Avenoso.

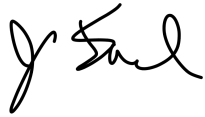
With regard to Sergeant Johnson, Deputy Chief Marino states that the Department conducted a parallel investigation and found that the investigation “exonerated Sergeant Johnson and found his actions to be within guidelines.” The letter goes on to say that you believe that this conclusion “is supported by body-worn camera footage of the incident.” The CCRB disagrees with this determination. Sergeant Johnson’s BWC video shows that at the time Sergeant Johnson deployed his CEW a second time, § 87(2)(b) was no longer actively resisting, was lying on the floor, and had already complained of having difficulty in breathing. As such, Sergeant Johnson was not justified in this second deployment of his CEW.

With regard to PO Avenoso, Deputy Chief Marino states that you determined that the BWC footage does not support a finding that PO Avenoso employed a chokehold or restricted § 87(2)(b) breathing. The CCRB disagrees with this determination. The BWC clearly shows PO Avenoso applying pressure onto § 87(2)(b) neck for a number of seconds as § 87(2)(b) lay on the floor. The BWC then shows PO Avenoso resting his forearm on § 87(2)(b) back while § 87(2)(b) is lying on the floor complaining about having difficulty breathing. Under NYPD Guidelines paragraph 221-03, a “chokehold shall include, but is not limited to any pressure to the throat, carotid artery or windpipe, which may prevent or hinder breathing, or reduce intake or air or

blood flow.” This BWC clearly shows that PO Avenoso had his knee on the neck of § 87(2)(b) in a manner that may have prevented or hindered his breathing.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, and in the interest of justice, it is respectfully requested that you permit the CCRB to pursue Charges and Specifications against both Sergeant Johnson and PO Avenoso in this matter.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", written in a cursive style.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

May 22, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208148 (Incident Date: November 24, 2022) regarding Sergeant Eric Johnson, Tax No. 956777 (DADS No. 2024-30351) and Police Officer Mario Avenoso, Tax No. 957343 (DADS No. 2024-30350)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated May 21, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Sergeant Eric Johnson and Police Officer Mario Avenoso. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Johnson and Police Officer Avenoso for the reasons expressed in my May 17, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Sergeant Johnson and Police Officer Avenoso for the substantiated allegations.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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